

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #09	CCRB Case #: 201803061	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 04/19/2018 2:30 PM	Location of Incident: 70-30 Austin Street	18 Mo. SOL 10/19/2019	Precinct: 112
Date/Time CV Reported Fri, 04/20/2018 10:17 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/20/2018 10:17 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM David Bleck	06686	948679	112 PCT
2. POM Daniel Rivas	03060	954273	112 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Robert Faulkner	669	956636	112 PCT
2. SGT Eduardo Roche	05090	931937	112 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Rivas	Abuse: Police Officer Daniel Rivas stopped the vehicle in which § 87(2)(b) was an occupant.	A . Substantiated
B . POM David Bleck	Abuse: Police Officer David Bleck stopped the vehicle in which § 87(2)(b) was an occupant.	B . Substantiated
C . POM Daniel Rivas	Force: Police Officer Daniel Rivas used physical force against § 87(2)(b) Babdaglian.	C . Unsubstantiated
D . POM David Bleck	Force: Police Officer David Bleck used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM David Bleck	Force: Police Officer David Bleck used physical force against § 87(2)(b)	E . Unsubstantiated
F . POM David Bleck	Abuse: Police Officer David Bleck searched the vehicle in which § 87(2)(b) was an occupant.	F . Unsubstantiated
G . POM David Bleck	Abuse: Police Officer David Bleck issued a summons to § 87(2)(b)	G . Substantiated

Case Summary

On April 19, 2018 at approximately 2:30 p.m. § 87(2)(b) was driving in his capacity as a taxi driver § 87(2)(b) on Austin Street near 70th Street in Queens. He approached unmarked vehicle #379, driven by PO Daniel Rivas of the 112th Precinct, with both PO David Bleck and PO Robert Faulkner, also of the 112th Precinct as passengers. In response to their perceived traffic obstruction, § 87(2)(b) said, “Are you playing fucking stupid,” to the officers. PO Rivas and PO Bleck then stopped § 87(2)(b) s vehicle (**Allegations A and B: Abuse of Authority-substantiated**).

Once they stopped his vehicle, PO Rivas requested § 87(2)(b) s identification, which he did not provide. After pulling § 87(2)(b) from his car, PO Rivas and PO Bleck allegedly slammed his face on the back of his vehicle (**Allegation C: Force-unsubstantiated; Allegation D: Force-unsubstantiated**), and PO Bleck allegedly struck § 87(2)(b) with his knee (**Allegation E: Force-unsubstantiated**). After § 87(2)(b) was handcuffed, PO Bleck entered his vehicle to drive it away from the scene, and allegedly searched it (**Allegation F: Abuse of Authority-unsubstantiated**).

PO Rivas drove § 87(2)(b) to Austin Street and 69th Road, and PO Bleck drove § 87(2)(b) s car to the same place, where they met with Special Operations Sgt. Eduardo Roche, also of the 112th Precinct, who recommended that § 87(2)(b) not be put through arrest processing, but instead be issued a summons. PO Bleck issued § 87(2)(b) a summons for § 87(2)(a) 160.50 (**Allegation G: Abuse of Authority-unsubstantiated**) (Board Review 06).

TARU footage was obtained but the lens of the camera that could have captured the incident was obscured. Only the safety lights of the police vehicle are visible in this angle. In addition, a camera from the Chevrolet dealer at 69th Road and Austin Street captured § 87(2)(b) s conversation with Sgt. Roche, but did not capture any instance in this incident when misconduct was alleged (Board Review 17).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Daniel Rivas stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Daniel Bleck stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (G) Abuse of Authority: Police Officer David Bleck issued § 87(2)(b) a summons.

It is undisputed that § 87(2)(b) and PO Rivas were driving in opposite lanes on Austin Street in Queens when they first met. It is undisputed that § 87(2)(b) cursed at the officers, saying something along the lines of, “Are you fucking playing stupid?” It is undisputed

that immediately after § 87(2)(b) made this statement, PO Rivas and PO Bleck decided to pull over his vehicle.

§ 87(2)(b) stated that there was a traffic obstruction in his own lane, and he told the officers, “Are you fucking playing stupid?” after he tried motioning them forward, so that he could continue driving. He said that at the time, the window of the driver’s side was only open wide enough to allow him to see the officers’ faces, and not their uniforms. He was not aware that they were officers when he made this statement (Board Review 2).

PO Rivas and PO Bleck stated that § 87(2)(b) motioned them forward, as if he were trying to speak with them. Once he caught their attention, and they drove towards him, he cursed at them absent any apparent reason. PO Rivas and PO Bleck then decided to stop § 87(2)(b) because they believed him to have committed disorderly conduct, that is, for § 87(2)(b) cursing at them (Board Reviews 3 and 4).

PO Rivas stated that he had told § 87(2)(b) several times to keep moving after § 87(2)(b) cursed at the officers, and that § 87(2)(b) had not done so. He denied that § 87(2)(b)’s actions, prior to the officers’ pulling him over, caused any significant traffic back-up. He assumed that § 87(2)(b) knew that he was an officer, by his uniform, but he did not identify himself verbally as a police officer at any point (Board Review 3).

PO Bleck also stated that the officers did not verbally identify themselves as police officers, and that as they were in an unmarked vehicle, only their uniform patches indicated them as such. He denied that any drivers in § 87(2)(b)’s lane swerved, honked, or otherwise indicated that traffic was unduly obstructed. He expressed that § 87(2)(b)’s apparently unprompted profanity caused him to fear for § 87(2)(b)’s wellbeing, though he did not support that assertion with additional factors (Board Review 4).

PO Faulkner echoed that the officers were concerned for § 87(2)(b)’s safety. He similarly said that only the cursing caused him to believe this. He did not remember if there were any vehicles at all behind § 87(2)(b)’s vehicle (Board Review 5).

All the officers testified that § 87(2)(b)’s initial encounter was very short. They also all testified that as soon as PO Rivas and PO Bleck pulled over § 87(2)(b)’s vehicle, PO Rivas requested his identification, and § 87(2)(b) refused to provide it. Instead of arresting § 87(2)(b) PO Bleck ultimately wrote him a summons for § 87(2)(a) 160.50 (Board Review 6).

TARU footage that captured the far side of the block where § 87(2)(b) was stopped partially confirmed that there was no line of cars or other visible evidence of a substantial traffic obstruction (Board Review 7).

Under New York State Penal Law code 240.25, a person commits disorderly conduct if they obstruct vehicular or pedestrian traffic (Board Review 8). The internal NYPD Legal Bureau Bulletin (Vol. 47, No. 2) regarding subsection 5 reinforces that the obstruction of traffic under a disorderly conduct must be “substantial” (Board Review 16).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, and G** be closed as **substantiated**.

Allegation (C) Force: Police Officer Daniel Rivas used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer David Bleck used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer David Bleck used physical force against § 87(2)(b)

It is undisputed that after § 87(2)(b)'s vehicle was stopped, he refused to provide his identification to PO Rivas after several requests to do so. It is undisputed that after he refused, PO Bleck told him that he would be pulled out of his vehicle. It is undisputed that PO Bleck and PO Rivas pulled § 87(2)(b) from his vehicle, and placed him, facing forward, over the trunk of his car to handcuff him. It is undisputed that PO Bleck was on § 87(2)(b)'s left side, and PO Rivas was on § 87(2)(b)'s right side.

§ 87(2)(b) alleged that when PO Rivas and PO Bleck brought him to the back of his vehicle, they slammed his head on the trunk. He also alleged that PO Bleck kned him in the left buttock in the commission of handcuffing him. § 87(2)(b) denied physically resisting custody. § 87(2)(b) indicated in his in-person statement that he has a § 87(2)(b). During § 87(2)(b)'s in-person interview on April 25, 2018, he reported pain on the left side of his ribcage, and bruising on his wrists because of this incident. As of his interview, he had not visited any medical provider regarding this incident (Board Review 2).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) § 87(2)(b) across the street provided a phone statement in which he stated that he saw officers pulling § 87(2)(b) from the vehicle, but did not describe any additional force (Board Review 9). Alleged witness § 87(2)(b) whose name § 87(2)(b)'s attorney § 87(2)(b) provided, could not be reached by the investigation.

PO Bleck and PO Rivas said that as § 87(2)(b) was being taken out of the vehicle, he was moving his arms, though not in a way that presented any substantive challenge to taking him into custody. They denied forcefully placing him on the trunk of the vehicle (Board Reviews 3 and 4). PO Bleck stated that it was possible that he used his knees to gain leverage with § 87(2)(b) but denied striking § 87(2)(b) with his knees (Board Reviews 3 and 4).

Sgt. Roche, who spoke with § 87(2)(b) immediately after he was released from handcuffs, denied that he complained of any pain, force, or injuries (Board Review 10).

§ 87(2)(g)

It is therefore recommended that **Allegations C, D, and E** be closed as **unsubstantiated**.

Allegation (F) Abuse of Authority: Police Officer David Bleck searched the vehicle in which

§ 87(2)(b) **was an occupant.**

§ 87(2)(g)

§ 87(2)(b) stated that when he returned to his vehicle, his center console had been opened, and the contents of his bag, which he kept on the front passenger's side, had been rearranged (Board Review 2).

§ 87(2)(b) a witness located during field work who refused to provide his last name, stated that he saw an officer remove a duffel-style bag from § 87(2)(b)'s vehicle.

PO Bleck denied that he did anything other than drive § 87(2)(b)'s vehicle when he entered it. At the time that PO Bleck entered and drove § 87(2)(b)'s car, § 87(2)(b) was under arrest, and being taken to the precinct for arrest processing. PO Bleck denied searching the vehicle.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **unsubstantiated**.

Allegations not pleaded:

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 11).
- PO Bleck has been a member of service for eight years. He has been named as a subject in two prior CCRB complaints and three prior CCRB allegations. None of these allegations has been substantiated (Board Review 12).
 - § 87(2)(g)
- PO Rivas has been a member of service for five years. This is the first CCRB complaint to which he has been named as a subject (Board Review 12).
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- § 87(2)(b) filed a notice of claim with the City of New York claiming pain and suffering, emotional distress, mental anguish, expenses incurred, pecuniary injuries, and other injuries not fully ascertained, and is seeking \$1 million as redress. As of the writing of this report, a 50H hearing has not been scheduled (Board Review 13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad #9

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature _____ Print Title & Name _____ Date _____